

WESTHAMPTON ZONING BOARD OF APPEALS

MINUTES FOR EXECUTIVE SESSION OF JANUARY 17, 2018

The meeting was called to order at 7:20 pm. Members present: L. Aloisi, J. Kelsey, S. Morrigan, W. Parks, and W. Tracy. Associate Member present by teleconference: S. St. Marie. Members absent: None. Guests present: None.

At 7:21 pm, Mr. Kelsey moved, and Mr. Tracy seconded the motion, to enter Executive Session. By roll call vote, the ZBA voted, 5 yeas, 0 opposed, to enter into Executive Session as the Chair declared that discussion in a public meeting may have detrimental effect on the town's litigating position with respect to the following litigation:

Amber Kellogg and Michael Barbeau v. Zoning Board of Appeals of the Town of Westhampton, MA, Leo Aloisi, Richard Tracy, Wayne Parks, John Kelsey, Shirley Morrigan, and Steven St. Marie, Trial Court, Housing Court, Western Division, Docket No. 18 CV0012.

Mr. Aloisi stated that Mr. St. Marie would be participating remotely and that physical attendance by Mr. St. Marie was unreasonably difficult. Mr. St. Marie stated, at the start of the Executive Session, that no other person was present or able to hear the discussion at the remote location. The ZBA ensured that a quorum of the body, including the chair, was physically present at the meeting location; that Mr. St. Marie and all persons present at the meeting location were audible to each other, and that all votes taken during the meeting would be taken by roll call vote. By roll call vote, 5 yeas, 0 opposed, the ZBA authorized the remote participation of Mr. St. Marie.

Executive Session Minutes

The ZBA reviewed an electronic mail from the Select Board by which the Select Board authorized KP Law to represent the ZBA in this litigation. Mr. Tracy then read into the record a letter received from Cheryl Provost. It was from Kellogg's attorney and suggested the wish of his clients to pursue any means possible to resolve this matter without the filed case going forward. Mr. Michaels, Kellogg's lawyer, requested a meeting with the Select Board or the ZBA to begin the process of resolving differences.

Mr. Aloisi noted that we need a motion to contact the lawyer for the Town, and that usually the attorneys ask the ZBA for information. He mentioned that the Select Board is "working on something" and that they want to settle this. He mentioned that the Select Board was working toward a solution that would require only a simple majority, rather than a super-majority of the ZBA, to vote for it.

Many questions were raised by those present, and the group authorized the Clerk to write up a list of questions to be asked of the lawyer. The Clerk was directed to send those questions to Mr. Aloisi, who would, along with Mr. Huston, be the contact point people for Town Counsel in the defense of the lawsuit. Mr. Aloisi stated that he would email ZBA members with the answers to the questions as soon as he was able to obtain the answers.

Mr. Kelsey then moved, and Mr. Parks seconded the motion, that Mr. Aloisi contact Jim Huston, Chair of the Select Board, to set up a conference call between the ZBA and its individual members and Town Counsel as soon as possible. Mr. St. Marie requested that he participate in that call by remote participation. The vote was unanimous in favor of the motion with Mr. Aloisi, Mr. Kelsey, Ms. Morrigan, Mr. Parks, Mr. St. Marie, and Mr. Tracy voting in favor.

At 8:35 pm, Mr. Kelsey moved, and Mr. Aloisi seconded the motion, to close the Executive Session. The vote to close Executive Session was unanimous, with Mr. Aloisi, Mr. Kelsey, Ms. Morrigan, Mr. Parks, Mr. St. Marie, and Mr. Tracy voting in favor of the motion.

Open Session

Mr. Kelsey then moved, and Mr. Parks seconded the motion, that Mr. Aloisi contact Jim Huston, Chair of the Select Board, to set up a conference call between the ZBA and its individual members and Town Counsel as soon as possible. Mr. St. Marie requested that he participate in that call by remote participation. The vote was unanimous in favor of the motion with Mr. Aloisi, Mr. Kelsey, Ms. Morrigan, Mr. Parks, Mr. St. Marie, and Mr. Tracy voting in favor.

Mr. Kelsey moved, and Mr. Aloisi seconded the motion, to adjourn the meeting. The vote was unanimous in favor of adjournment, and the meeting adjourned at 8:40 pm.

Respectfully submitted,

Shirley P. Morrigan
Clerk

DOCUMENTS REVIEWED IN EXECUTIVE SESSION

Letter dated January 11, 2018 from Normal C. Michaels to Two of Westhampton Selectboard and Town of Westhampton Zoning Board of Appeals